



DOT/RSPA
DOCKETS

U.S. Department
of Transportation 88 DEC 27 PM 12:35

DEC 22 1988

400 Seventh Street, S.W.
Washington, D.C. 20590

Research and
Special Programs
Administration

DOT-E 10083
(CORRECTED COPY)

1. Dow Chemical Company, Sarnia, Ontario, Canada, (U.S. Dow Chemical Company, Midland, Michigan) is hereby granted an emergency exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of a non-flammable gas for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes a one time shipment of chlorine in a 105A500W tank car with a defective safety valve equipped with a chlorine "C" kit, and provides no relief from any regulations other than as specifically stated.
2. BASIS. This emergency exemption is based on Dow Chemical Company's application of November 29, 1988, submitted in accordance with 49 CFR 107.113 based on a protection of life and property and supplemental letter dated December 14, 1988.
3. HAZARDOUS MATERIALS (Descriptor and class). Chlorine, classed as a non-flammable gas.
4. PROPER SHIPPING NAME (49 CFR 172.101). Chlorine
5. REGULATION AFFECTED. 49 CFR 173.29(c) (2), 179.100-15 and 179.102-2.
6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.
7. SAFETY CONTROL MEASURES.
 - a. Packaging prescribed is a DOT Specification 105A500W tank car tank, DOWX 8057, with a defective safety valve, which has been equipped with a chlorine "C" kit to prevent the release of chlorine vapors.
 - b. The manway protective housing cover while opened must be chained or otherwise fastened so that it cannot change position during transportation.
 - c. Prior to shipment of the tank car, the car must be purged with nitrogen, so that the chlorine-nitrogen ratio is approximately 50 percent and depressurized to approximately 10 psig.
8. SPECIAL PROVISIONS.
 - a. The shipment must be between Benton Harbor, Michigan and the Dow Chemical Company located at Midland, Michigan, approximately 300 miles.
 - b. The Federal Railroad Administration (FRA) is to be notified if any unusual incident occurs during the movement by contacting the:

Federal Railroad Administration
Office of Safety, RRS-12
400 Seventh Street S.W.
Washington D.C. 20590
(202) 366-9178 or 366-0549

c. The tank car must be marked DOT- E 10083 above the DOT specification number in at least four inch letters.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Transportation (OHMT) as soon as practicable.

10. EXPIRATION DATE. February 1, 1989.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials Transportation

DEC 22 1988

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FRA